DATED [ ] 2026

COBALT PHOTONICS LIMITED

(1)

and

TESSANDRI INSTRUMENTS S.p.A.

(2)

PATENT AND KNOW-HOW LICENCE AGREEMENT

relating to the Helios FMCW LiDAR Technology

(Project Indigo)

Whitfield Carter LLP
22 Bishopsgate, London EC2N 4BQ

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THIS AGREEMENT is made on 16 February 2026 (the “Effective Date”)

BETWEEN:

(1) COBALT PHOTONICS LIMITED, a company incorporated in England and Wales (registered number 11894522) whose registered office is at Unit 7, Granta Park, Great Abington, Cambridge CB21 6GP (the “Licensor”); and

(2) TESSANDRI INSTRUMENTS S.p.A., a company incorporated in Italy (registered number MI-2048817) whose registered office is at Via Camillo Olivetti 12, 20139 Milan, Italy (the “Licensee”),

each a “Party” and together the “Parties”.

BACKGROUND

(A) The Licensor has developed and owns certain patents, patent applications and know-how relating to frequency-modulated continuous-wave (FMCW) coherent-detection LiDAR and on-chip optical beam-steering, marketed under the name “Helios”.

(B) The Licensee designs and manufactures industrial sensing and automation instruments and wishes to acquire a licence to use the Helios technology to develop, manufacture and sell LiDAR products within the Field of Use and the Territory.

(C) The Licensor is willing to grant such a licence on the terms and subject to the conditions of this Agreement.

IT IS AGREED as follows:

1. Definitions and Interpretation

“Affiliate” means, in relation to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with that Party, where “control” means the holding of more than 50% of the voting rights.

“Confidential Information” means all information disclosed under the Mutual Non-Disclosure Agreement between the Parties dated 24 September 2025 and all Know-How and other confidential information disclosed under this Agreement.

“Contract Year” means each successive period of twelve months commencing on the Effective Date or an anniversary of it.

“Effective Date” means the date set out at the head of this Agreement.

“Field of Use” means industrial automation, robotics and autonomous materials-handling applications, and expressly excludes the automotive advanced driver-assistance systems (ADAS) and autonomous-passenger-vehicle fields, which are reserved to the Licensor.

“Helios Technology” means the Licensed Patents and the Know-How, together with all Improvements licensed under this Agreement.

“Improvements” means any modification, enhancement, development or improvement to the Helios Technology made by either Party during the Term.

“Know-How” means the technical information, manufacturing processes, calibration procedures, designs, drawings, test data and trade secrets relating to the Helios Technology described in Schedule 2.

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“Licensed Patents” means the patents and patent applications listed in Schedule 1, together with all patents granted on those applications and all divisionals, continuations, reissues, extensions and supplementary protection certificates.

“Licensed Products” means any product within the Field of Use that is made using, or that incorporates or embodies, any of the Helios Technology.

“Net Sales” means the gross amounts invoiced by the Licensee and its Affiliates and sub-licensees for Licensed Products, less the following to the extent actually allowed and documented: (a) trade and quantity discounts; (b) credits for returns; (c) sales, value-added and excise taxes; and (d) carriage, freight and insurance separately stated on the invoice.

“Territory” means the member states of the European Economic Area, the United Kingdom and Switzerland.

1.2 Clause, Schedule and paragraph headings do not affect interpretation. A reference to a statute or statutory provision is a reference to it as amended or re-enacted. Words in the singular include the plural and vice versa.

2. Grant of Licence

2.1 In consideration of the fees payable under clause 6 and subject to the terms of this Agreement, the Licensor grants to the Licensee an exclusive, non-transferable licence under the Helios Technology to develop, make, have made, use, market, sell and otherwise commercialise Licensed Products within the Field of Use in the Territory during the Term.

2.2 The licence granted under clause 2.1 is exclusive within the Field of Use, such that the Licensor shall not itself exploit, nor grant any further licence to any third party to exploit, the Helios Technology within the Field of Use in the Territory, save as provided in clause 2.4 (Reserved Rights).

2.3 The Licensee may grant sub-licences within the Field of Use only with the Licensor’s prior written consent (not to be unreasonably withheld), and each sub-licence shall be consistent with, and subordinate to, this Agreement. The Licensee shall remain responsible for the acts and omissions of its sub-licensees.

2.4 **Reserved Rights.** The Licensor reserves the right to use and exploit the Helios Technology (a) outside the Field of Use; (b) outside the Territory; and (c) for research and development purposes.

2.5 No licence is granted other than as expressly set out in this Agreement and no rights are granted by implication or estoppel.

3. Technology Transfer

3.1 The Licensor shall, over a period of nine (9) months from the Effective Date, deliver to the Licensee the Know-How and provide the technology-transfer support described in Schedule 2, including documentation, two engineer secondments and a wafer-level calibration toolkit.

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3.2 In consideration of the technology-transfer support, the Licensee shall pay to the Licensor a transfer support fee of £350,000 (plus VAT), payable in three equal instalments at the start, midpoint and completion of the transfer programme.

3.3 The Licensee shall provide reasonable access, facilities and personnel to enable the Licensor to perform the technology-transfer programme.

4. Improvements

4.1 Each Party shall promptly disclose to the other any Improvement it makes during the Term.

4.2 Improvements made by the Licensor shall be included within the Helios Technology and licensed to the Licensee on the terms of this Agreement at no additional fee.

4.3 The Licensee hereby grants to the Licensor a non-exclusive, royalty-free, worldwide licence (with the right to sub-licence) under any Improvement made by the Licensee, for use outside the Field of Use.

5. Quality, Marking and Compliance

5.1 The Licensee shall manufacture Licensed Products in accordance with the quality standards and specifications set out in the Know-How and shall comply with all applicable laws and regulatory requirements in the Territory.

5.2 The Licensee shall mark Licensed Products with applicable patent numbers and with a notice acknowledging the Licensor's ownership of the Helios Technology, in a form approved by the Licensor.

6. Financial Provisions

6.1 **Upfront Fee.** In consideration of the grant of the licence under clause 2, the Licensee shall pay to the Licensor an upfront fee of £4,500,000 (plus VAT), payable as to £2,000,000 on the Effective Date and £2,500,000 on the first anniversary of the Effective Date.

6.2 **Running Royalty.** The Licensee shall pay to the Licensor a running royalty of 4.5% of Net Sales of Licensed Products in each Contract Year.

6.3 **Minimum Royalty.** From the second Contract Year onwards, the Licensee shall pay to the Licensor a minimum annual royalty of £750,000 (the "Minimum Royalty"), against which running royalties paid in the relevant Contract Year shall be credited. If in any Contract Year the running royalties payable are less than the Minimum Royalty, the Licensee shall pay the shortfall. If the Licensee fails to pay the Minimum Royalty, the Licensor may by notice convert the licence to non-exclusive.

6.4 Running royalties shall be paid quarterly in arrears within thirty (30) days of the end of each calendar quarter, accompanied by a royalty report in the form of Schedule 3.

6.5 All sums are exclusive of VAT and shall be paid in pounds sterling without set-off or deduction, save for any withholding required by law. Late payments shall bear interest at 4% above the base rate of the Bank of England.

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6.6 **Audit.** The Licensee shall keep accurate records of Net Sales and shall permit the Licensor, on reasonable notice and not more than once in any Contract Year, to have those records audited by an independent firm of accountants. If an audit reveals an underpayment exceeding 3%, the Licensee shall bear the cost of the audit.

7. Intellectual Property; Prosecution and Enforcement

7.1 All right, title and interest in and to the Helios Technology shall remain vested in the Licensor.

7.2 The Licensor shall, at its own cost, prosecute and maintain the Licensed Patents and shall not abandon any Licensed Patent material to the Field of Use without first offering the Licensee the opportunity to assume prosecution and maintenance.

7.3 Each Party shall promptly notify the other of any actual or suspected infringement of the Licensed Patents within the Field of Use. The Licensor shall have the first right (but not the obligation) to take action; if it does not do so within sixty (60) days, the Licensee may take action in respect of infringements within the Field of Use, at its own cost.

8. Warranties and Indemnities

8.1 The Licensor warrants that the warranties set out in Schedule 4 (Warranties) are true and accurate as at the Effective Date.

8.2 Save as expressly set out in this Agreement, all warranties, conditions and terms implied by statute or common law are excluded to the fullest extent permitted by law. The Helios Technology is otherwise licensed “as is”.

8.3 The Licensee shall indemnify the Licensor against all liabilities, costs and expenses arising out of the Licensee’s manufacture, use or sale of Licensed Products, save to the extent caused by the Licensor’s breach of warranty.

9. Limitation of Liability

9.1 Nothing in this Agreement limits or excludes either Party’s liability for death or personal injury caused by negligence, for fraud, or for any liability that cannot be limited or excluded by law.

9.2 Subject to clause 9.1, neither Party shall be liable for any loss of profit, loss of business, or any indirect or consequential loss.

9.3 **Liability Cap.** Subject to clauses 9.1 and 9.2, the aggregate liability of each Party under or in connection with this Agreement shall not exceed 150% of the fees paid or payable by the Licensee under this Agreement in the twelve (12) months preceding the event giving rise to the claim.

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10. Term and Termination

10.1 This Agreement takes effect on the Effective Date and, unless terminated earlier, continues for twelve (12) years (the “Term”), after which it may be extended by written agreement.

10.2 Either Party may terminate this Agreement immediately on written notice if the other commits a material breach that is not remedied within thirty (30) days of notice, or if the other becomes insolvent.

10.3 On termination, the licence granted under clause 2 shall cease and the Licensee shall cease all use of the Helios Technology, save that the Licensee may sell off existing stock of Licensed Products for a period of six (6) months, subject to payment of royalties.

10.4 Clauses 1, 6 (in respect of accrued sums), 7.1, 8, 9, 11 and 12 survive termination.

11. Confidentiality

11.1 Each Party shall keep confidential all Confidential Information of the other and shall not use it except for the purposes of this Agreement. This obligation survives termination for a period of five (5) years.

12. General

12.1 **Entire agreement.** This Agreement, together with the documents referred to in it, constitutes the entire agreement between the Parties and supersedes all prior agreements, save the Mutual Non-Disclosure Agreement which continues in force.

12.2 **Assignment.** The Licensee shall not assign, transfer or sub-contract any of its rights or obligations without the Licensor’s prior written consent.

12.3 **Variation.** No variation of this Agreement is effective unless in writing and signed by both Parties.

12.4 **Third-party rights.** A person who is not a Party has no rights under the Contracts (Rights of Third Parties) Act 1999.

12.5 **Notices.** Any notice shall be in writing and delivered by hand, pre-paid post or email to the addresses set out at the head of this Agreement.

12.6 **Counterparts.** This Agreement may be executed in counterparts.

12.7 **Governing law and jurisdiction.** This Agreement and any dispute arising out of or in connection with it shall be governed by English law, and the Parties submit to the exclusive jurisdiction of the courts of England and Wales.

This Agreement has been entered into on the date stated at the head of it.

SIGNED for and on behalf of COBALT PHOTONICS LIMITED

Name: Dr Eleanor Voss Title: Director Signature: /s/ Eleanor Voss

SIGNED for and on behalf of TESSANDRI INSTRUMENTS S.p.A.

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Name: Marco Tessandri Title: Amministratore Delegato Signature: /s/ Marco Tessandri

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Schedule 1 — Licensed Patents

The full patent schedule (7 granted patents and 4 pending applications) is set out in the accompanying patent index (ProjectIndigo_PatentSchedule.xlsx) and is incorporated into this Agreement. The principal granted patents are:

- EP3142876B1 — “Coherent FMCW LiDAR detection apparatus” (granted EPO, 2021).
- EP3298714B1 — “On-chip optical phased-array beam-steering device” (granted EPO, 2022).
- US10,845,617 — “Frequency-modulated continuous-wave ranging system” (granted USPTO, 2020).
- US11,231,094 — “Silicon-photonic coherent receiver” (granted USPTO, 2022).
- CN112461923B — “FMCW LiDAR signal-processing method” (granted CNIPA, 2022).
- JP6987452B2 — “Optical beam-steering integrated circuit” (granted JPO, 2021).
- EP3501122B1 — “Calibration method for coherent LiDAR arrays” (granted EPO, 2023).

Schedule 2 — Know-How and Technology Transfer

The Know-How comprises: (a) the Helios fabrication process specification (mask sets, process flow and yield-control procedures); (b) the wafer-level optical calibration methodology and associated toolkit; (c) the firmware and DSP signal-processing libraries for coherent detection; and (d) the qualification and reliability test protocols. The technology-transfer programme runs for nine (9) months and includes two engineer secondments and on-site commissioning support.

Schedule 3 — Form of Royalty Report

Each quarterly royalty report shall state, for the relevant quarter: (a) the number and description of Licensed Products sold; (b) gross invoiced amounts; (c) permitted deductions; (d) Net Sales; (e) the running royalty due; and (f) cumulative royalties and Minimum Royalty reconciliation for the Contract Year.

Schedule 4 — Warranties

1. The Licensor is the sole legal and beneficial owner of, or is otherwise entitled to license, the Licensed Patents and the Know-How.
2. The Licensed Patents listed in Schedule 1 are subsisting and, so far as the Licensor is aware, valid and enforceable.
3. The Licensor has not granted any licence or other right in respect of the Helios Technology within the Field of Use in the Territory that is inconsistent with this Agreement.
4. So far as the Licensor is aware, the use of the Helios Technology within the Field of Use as contemplated by this Agreement does not infringe the intellectual property rights of any third party.
5. The Licensor has not received any written notice alleging that any Licensed Patent is invalid or that its exploitation infringes any third-party right.

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6. The Know-How has been kept confidential and has not been disclosed to any third party except under obligations of confidentiality.
7. There is no litigation, arbitration or other proceeding pending or, so far as the Licensor is aware, threatened in relation to the Helios Technology.

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